

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

-----X
DAVID MCKAY,

Plaintiff

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER ROBERT VASSALLO
(SHIELD#7162)**

Defendant.

-----X

Index No. _____

Purchased _____

Plaintiff designates The Bronx
County as the place of trialThe basis of the venue is
where the tort arose**SUMMONS****TO THE ABOVE NAMED DEFENDANT:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 27, 2018

MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II

Attorneys for Plaintiff

380 Lexington Avenue, 17th Floor

New York, New York 10168

(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

OFFICER ROBERT VASSALLO (SHEILD # 7162)

44th PRECINCT

2 East 169th Street

Bronx, NY 10452

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****DAVID MCKAY****Plaintiff,****Index No.****Verified Complaint****- against -****THE CITY OF NEW YORK,
POLICE OFFICER ROBERT VASSALLO
(SHIELD#7162)****Defendant.**

Plaintiff DAVID MCKAY, by his attorneys MARTINDALE & ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of the Defendant, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK (hereinafter referred to as the "CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department (hereinafter referred to as "NYPD") officers mentioned herein, including Police Officer Robert Vassallo (hereinafter referred to as "VASSALLO"), were, at the time of the occurrence, police officers of Defendant CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff David McKay (hereinafter referred to as "MCKAY") is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 8:30pm on August 3, 2017, in and around Ogden Avenue and W162nd Street, Bronx, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.
9. On the evening of August 3, 2017, McKAY was leaving from Public School 199, in Bronx County where he worked as a camp counselor.
10. At approximately 6pm McKAY went to visit his friend, Emanuel, who lived in the area near the school.
11. Approximately 2 hours after arriving at Emanuel's apartment, McKAY went downstairs to go to the store on W164th and Ogden Avenue.
12. Upon walking back to Emanuel's apartment building, McKAY bumped into some acquaintances of his and stopped to have a conversation with them on the corner of W162nd and Ogden Avenue.
13. Then, 2 black Crown Victoria sedans pulled up to the sidewalk, resulting in the previously mentioned acquaintances walking away, and McKAY staying. There, plain clothes NYPD Officers, including VASSALLO, approached McKAY and asked if he had anything on him and began searching the surrounding area.

FIRST CAUSE OF ACTION: FALSE ARREST

14. Paragraphs 1-13 are incorporated by reference as fully set forth herein
15. Shortly thereafter, NYPD officers, including VASSALLO jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully handcuffed and arrested McKAY.

16. VASSALLO arrested McKAY intentionally, and McKAY at all times was aware he was being arrested and did not consent to being arrested.
17. After being placed under arrest, McKAY was taken to the 44th Precinct, strip searched and then placed in a holding cell.
18. At approximately 11:00pm McKAY was brought to central booking in Bronx County.
19. At approximately 11:00pm on August 4th, McKAY was released from custody on his own recognizance.
20. McKAY went back and forth to court until his case was ultimately dismissed on November 28, 2017.
21. As a result of being arrested, McKAY lost his job resulting in the loss of income.
22. In addition to losing his job, McKAY suffered emotional distress.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

23. Paragraphs 1-22 are incorporated by reference as though fully set forth herein.
24. The officers who arrested McKAY, as described in paragraphs 8-22, intended to confine him.
25. McKAY was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.
27. In arresting McKAY as described in paragraphs 8-22, VASSALLO were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.
28. In arresting McKAY as described in paragraphs 8-22, VASSALLO sought either a detriment to VASSALLO or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.
29. As a result of Defendants' abuse of process, VASSALLO sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

30. Paragraphs 1-29 are incorporated by reference as though fully set forth herein.
31. In arresting McKAY as described in paragraphs 8-22, the VASSALLO acted with malice and without probable cause.
32. As a result of being maliciously prosecuted by VASSALLO, McKAY sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

33. Paragraphs 1-32 are incorporated by reference as though fully set forth herein.
34. Upon information and belief, VASSALLO, who illegally arrested McKAY, was at all times relevant duly appointed and acting officers of the City of New York Police Department.
35. At all times mentioned herein, VASSALLO and the other NYPD police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
36. McKAY is and at all times relevant herein a citizen of the United States and resident of Bronx County in the State of New York. He brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
37. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
38. On or about August 3, 2017, as described in paragraphs 8-22, armed officers of the NYPD, including VASSALLO, while effectuating the seizure of the McKAY, searched, seized, and grabbed the his person, without a court authorized arrest or search warrant. VASSALLO and the other NYPD officers seized the person of McKAY during the arrest process in an unlawful manner.
39. McKAY was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.

40. The above actions of VASSALLO and the other present NYPD officers caused the McKAY to be deprived of the following rights under the United States Constitution:

- (a) Freedom from illegal search and seizure,
- (b) Freedom from false arrest,
- (c) Freedom from malicious prosecution,

41. The VASSALLO and the other NYPD officers subjected McKAY to such deprivations, either in a malicious or reckless disregard of the McKAY's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.

42. The direct and proximate result of VASSALLO's acts are that McKAY has suffered severe and permanent psychological injuries. Plaintiff was forced to endure pain and suffering to his detriment.

SIXTH CAUSE OF ACTION: NEGLIGENCE

43. Paragraphs 1-42 are incorporated by reference as though fully set forth herein.

44. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, malicious prosecution, were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.

45. As a result of the negligence by Defendant CITY, McKAY sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

EIGHTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

46. Paragraphs 1-45 are incorporated by reference as though fully set forth herein.
47. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.
48. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or probable cause. Defendant CITY was further negligent by failing to implement a policy within its police department instructing police officers to use reasonable force when an individual resists arrest and to not use force when an individual does not resist arrest.
49. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:
- (a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.
50. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize McKAY.

SEVENTH CAUSE OF ACTION: NEGLIGENT HIRING

51. Paragraphs 1-47 are incorporated by reference as though fully set forth herein.

52. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, conduct illegal searches, or use excessive force during the arrest process.

WHEREFORE, Plaintiff DAVID McKAY demands judgment against the Defendant in the sum of \$10,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

August 27, 2018

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, NY 10168
(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

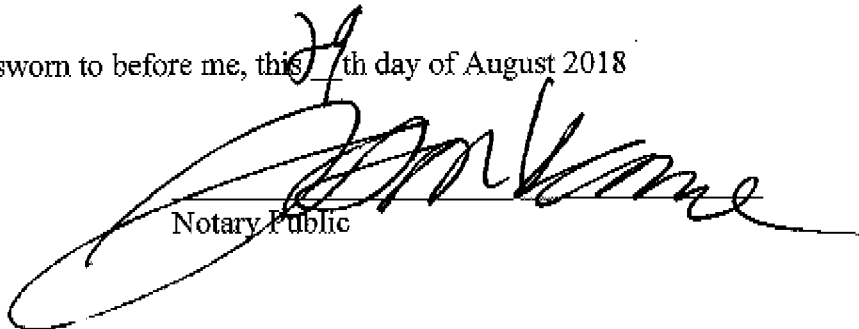
That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
August 27, 2018


DAVID MCKAY

Subscribed and sworn to before me, this 27th day of August 2018


Notary Public

NOTARY PUBLIC JASON VANCE
State of New York
No. 06716187023
Qualified in Bronx County
Commission Expires Feb. 8, 2019
19

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

Index No:

DAVID McKAY,

Plaintiff,

-against-

**THE CITY OF NEW YORK,
POLICE OFFICER ROBERT VASSALLO
(SHIELD#7162)**

Defendant.

SUMMONS & COMPLAINT

Martindale & Associates, PLLC
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, NY. 10168
(212) 405-2233

**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

OFFICER ROBERT VASSALLO (SHEILD # 7162)
44th PRECINCT
2 East 169th Street
Bronx, NY 10452